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POLITICS

Flock ALPR debate focuses on privacy and safety concerns in St. Cloud



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Key Points

- The St. Cloud city council and police discussed automated license plate readers and privacy in a work session Sept. 21.
- St. Cloud police have five Flock ALPRs and five Axon ALPRs installed as well as mobile Axon ALPRs on more than 35 vehicles.
- While the police chief defended the use of the readers to find criminal activity, members of the public said trust in the police department has diminished since the cameras came into use.

After St. Cloud police gave a presentation to city council on its use of automated license plate readers on Monday, council members discussed concerns about balancing law enforcement work with personal privacy.

“Some people would prefer more public safety and are willing to give up some personal privacy,” council member Mark Johnson said. “Others are the reverse of that.”

The technology has been used in St. Cloud since 2015, Police Chief Jeff Oxton said. It automatically scans license plates and pings law enforcement if one is connected to any criminal activity, which can range from human trafficking cases to vehicles registered to drivers with revoked or suspended licenses.

The session came after Sherburne County decided to remove its Flock Safety ALPRs in August and an 18-year-old Sauk Rapids man was charged with cutting down a St. Cloud camera in June.

Mayor Jake Anderson said he also wanted to do the study session because there's a lot of misinformation online and within the St. Cloud community. He said he wanted to bring the ALPR conversation to the public to learn about the possible benefits or pitfalls.

"With everything being in the cloud, there is always a chance of some sort of data breach. … It's all about what is stored? How is that saved? Is it only stored for seven days?" he said.

ALPRs: Our Flock camera investigation sparks police firings, arrests

St. Cloud ALPRs

The St. Cloud Police Department owns five stationary Flock ALPRs, which were installed in summer 2024, and five stationary Axon ALPRs, which were installed this June, Oxton said. SCPD also has mobile Axon ALPRs mounted on more than 35 of its fleet vehicles.

Its Flock cameras cost $15,000 annually, its stationary Axon cameras cost $12,500 and the mobile ones cost $22,500.

Minnesota state law and Axon policy limit data retention to 60 days from when it was collected unless it is being used in an investigation. On Aug. 13, Flock Safety lowered the limit for its own cameras from 30 days to seven.

There's a new spa in St. Cloud New wellness spa Nirvana opens in Downtown St. Cloud

"I disagree with that, because it's really hard if somebody goes missing somewhere else and it happened to be 14 days ago, and they come because they think the person was in St. Cloud, and we don't have any data because we got rid of it," the chief said. "We did adjust it to that, though, because I'm not going to have it out there while they're going through this right now."

He said it’s SCPD’s job to strengthen public safety as technology increases. Since he joined the department in 1994, it has added cellphones, digital recording equipment, body cameras, drones, Tasers and Narcan — none of which it had before.

Oxton said there have been success stories, particularly from Anoka County’s ALPR system.

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“An offender attempted to transport a sexual assault victim to Mexico to avoid prosecution,” he said. “An ALPR hit located the vehicle in Kansas and the victim was safely returned.”

He said data safety concerns are often misunderstood, because cloud-based storage is the same thing Apple, Samsung and Amazon all use, because it's safer than people realize. He said St. Cloud specific data is also misunderstood because it's held in a closed system; it’s not part of a larger database for people to freely search.

“We help other law enforcement,” he said. “They’re required to give us their … agency name, the case number, why they’re looking at it — it has to be a crime. We make them document it.”

Public input about ALPR cameras in St. Cloud

The study session was not a public hearing and nothing involving ALPRs were on the agenda for the regular meeting that followed.

Council Chair Mike Conway said the council is still figuring out when or whether there will be a regular meeting to discuss the topic farther. He said there hadn’t been any

complaints in the first 10 years the city used the technology.

“As far as the community is concerned,” he said, “I think the trust they have built and has been built by the police department and the community through (the Community Policing) Agreement, … I think that’s something that is a foundation that they can build on.”

Residents who spoke during the public forum after the meeting disagree, with multiple people saying public trust has gone down since they’ve learned of ALPR use.

“The police department’s been working on it a lot in the community,” St. Cloud resident Hannah Kosloski said. “But, in the steps they’ve taken related to mass surveillance cameras, they just keep going with it, and no one has checked in about the process. No one’s talked about the legality of it.”

Concerns mostly stem from a privacy viewpoint. If police have the ability to see every car on the road, the cameras could be abused, Kosloski said. Police could track people within the city or the data could be breached, particularly if the cameras use artificial intelligence of any kind. Even the biennial audit results and the recently implemented monthly internal audits aren’t easily accessible online.

Musab Nuh, another resident who spoke, said he requested the biennial audit of the ALPR’s use along with the contracts through a public information request. He said that was on Aug. 12, 41 days before the ALPR study session, and has not received anything from St. Cloud.

At the same time, he requested Sartell’s information, which he received relatively quickly. He said those results, which included eight cameras capturing almost 10.5 million images over the past year, showed more than 99% flagged nothing and nearly all it did flag were license status checks. There weren’t any child abduction alerts, but there were seven stolen vehicles.

“When you do the pure math, pros, cons, cost analysis, you end up with a very pricey product-slash-service that reduces public trust and doesn’t actually do as well of a job

that police officers were already doing pretty well," Nuh said.